FREELANCE RECRUITER SERVICE AGREEMENT

This Freelance Recruiter Agreement ("Agreement"), dated as of [9th March 2023], is entered into by and between Jaqueline Marconi ("Freelance Recruiter"), and Zamesin INC. represented by the CEO Ivan Zamesin ("Company").

Hereinafter, "Client" will refer to and be used to describe the following party: Zamesin INC. "Recruiter" will refer to and be used to describe the following party: Freelance Recruiter. Recruiter and Client may be referred to individually as "Party" and collectively as the "Parties".

Article 1 – Agreement

Subject to the terms and conditions of this Agreement, Client agrees to engage a freelance recruiter's service to recruit respondents for their B2B Educational Product Research Interview.

Specifications of individuals for the interview:

1) Departments: Human Resource, Information Technology, Research & Development, and corporate learning departments' specialists.
2) Heads: Team Leads, Chief Data Officer, Chief Technology Officer, Chief Information Officer, Chief Digital Transformation Officer, Chief Operating Officer, heads of departments and branches.
3) HR: Learning & Development, Human Resource Generalist, Human Resource, Business Partner, People partner, Training & Development.
4) Respondents responsible for education within organizations with over 1000 employees are eligible. Educational organizations are not eligible.

The Recruiter agrees to provide applicable respondents as much as needed by the client for the interview.

The Recruiter is responsible for screening respondents, scheduling interviews accordingly, to have the respondents sign the consent form (if needed) prior to the interview and ensuring a successful interview.

The Recruiter agrees to provide the Client with 10 participants by the completion date which is 1st May 2023.

Article 2 – Fees

The Client will provide the following compensation to the freelance recruiter:

	Price in USD
Recruiter (Per Head)	$75
Respondents (Per Individual)	$60

Within ten (10) to fourteen (14) days following the interview's successful conclusion, The Client is required to pay The Recruiter accordingly.

As for The Respondents, after each successful interview The Client is obliged to pay their respondent their respective fees.

The mode of payment and online payment system agreed to use by both Client and Recruiter are as listed below:

Mode of Payment:

- Invoice Payment
- Payment Link (Stripe or similar)
- Transfer between bank accounts

Article 3 – Confidentiality

Recruiter hereby acknowledges and agrees that Client possesses certain non-public Confidential Information (as hereinafter defined) regarding their employees, employment policies, business operations, and development. The Parties agree that the Confidential Information is secret and valuable to Client. Client desires to maintain the secret and private nature of any Confidential Information provided to Recruiter.

In order for Recruiter to perform their recruiting services, it may be necessary for the Company to provide Recruiter with Confidential Information (as defined below) regarding the Company's business and products. The Company will rely heavily upon Recruiter's integrity and prudent judgment to use this information only in the best interests of the Company.

A) Confidential Information refers to any information which is confidential and commercially valuable to Client. The Confidential Information may be in the form of employee information, documents, techniques, methods, practices, tools, specifications, inventions, patents, trademarks, copyrights, equipment, algorithms, models, samples, software, drawings, sketches, plans, programs or other oral or written knowledge and/or secrets and may pertain to, but is not limited to, the fields of research and development, forecasting, marketing, personnel, customers, suppliers, intellectual property and/or finance or any other information which is confidential and commercially valuable to Client. Confidential Information may or may not be disclosed as such, through labeling, but is to be considered any information, which ought to be treated as confidential under circumstance through which it was disclosed.

Confidential Information shall not mean any information which:

I. is known or available to public at the time of disclosure or became known or available after disclosure through no fault of Recruiter;
II. is already known, through legal means, to Recruiter;
III. is given by Client to third parties, other than Recruiter, without any restrictions;
IV. is given to Recruiter by any third party who legally had the Confidential Information and the right to disclose it; or
V. is developed independently by Recruiter and Recruiter can show such independent development

Recruiter hereby agrees that it shall:

I. Not disclose the Confidential Information via any unauthorized means to any third party;
II. Not use the Confidential Information for any purpose except those contemplated herein or expressly authorized by Client.

Article 4 – Relationship of Parties

Recruiter is unauthorized as an agent, employee, or legal representative of Client, except for the limited agency purpose of pre-screening respondents. Client shall not have the power to control the activities and operations of Recruiter and Recruiter status at all times will continue to be that of an independent contractor to Client.

Article 5 – Term

This freelance recruiting agreement shall commence from 9th March 2023 ("Effective Date") and will conclude upon completion date which is 1st May 2023.

Both parties will be given the ability to extend this agreement upon the conclusion date, or a new agreement may be entered into between the parties.

Article 6 – Termination

Any breach or disregard to any clause or provision in this freelance recruiting agreement will be grounds for termination without additional notification. Either party of this agreement may terminate this agreement with five (5) days prior written notice to the responding party.

This agreement will terminate when the Client has received enough respondents for the interview but only after all fees are paid completely.

Article 7 – Indemnification

The Parties agree to hold each other harmless for any loss, damage, or injury that may incur from that party's negligence.

The indemnified party shall provide the responding party with notice of any and all indemnification taking place.

Article 8 – Dispute Resolutions

In the instance of a dispute arising between the Parties both the Client and the Recruiter, agree to seek arbitration as a means to solve such disputes. The parties shall agree on a single neutral arbitrator to conduct such counsel. If the parties cannot agree on a single arbitrator, they will be entitled to seek one arbitrator each. The selected arbitrators shall agree on a single arbitrator at that point to resolve the dispute. The arbitrator will under no circumstance be allowed to modify or change this freelance recruiting agreement. Furthermore, the arbitrator's decision shall be deemed the final decision and the parties will be responsible for any individual fees incurred during the above-mentioned arbitration.

Article 9 – Governing Law

This Freelance Recruiting Agreement and any matter or dispute arising out of or related to the subject matter shall be governed, construed, and enforced in accordance with the Laws of Brazil.

Article 10 – Assignment

The Parties may not transfer, sell, or assign any portions of this freelance recruiting agreement to any third party individuals without the written consent by the remaining party involved.

Article 11 - Agreement

This Agreement constitutes the complete agreement and sets forth the entire understanding and agreement of the parties as to the subject matter of this Agreement and supersedes all prior discussions and understandings in respect to the subject of this Agreement, whether written or oral. By signing below, the Parties agree to and acknowledge all the provisions included in this freelance recruiting agreement.

Article 12 - Parties Details

Zamesin INC.
Registered ID6825961
EIN 88-2731984
1520 1st Street Coronado, San Diego, California, L208, 92118, USA
Registered agent CSC

International Wires – for payments outside USA
Receiving bank 57D Account with institution
SWIFT / BIC Code CHFGUS44021
ABA Routing Number 091311229
Bank Name Choice Financial Group
Bank Address 4501 23rd Avenue S Fargo, ND 58104 USA
Beneficiary 59 Beneficiary customer name & address I
BAN / Account Number 202248723465
Beneficiary Name Zamesin INC.
Beneficiary Address 1520 1st Street, Coronado, CA 92118 USA

Domestic transfer details – for payments within USA
Beneficiary Beneficiary Name Zamesin INC.
Account Number 202248723465
Type of Account Checking Beneficiary
Address 1520 1st Street, Coronado, CA 92118
Receiving Bank Details
ABA Routing Number 091311229
Bank Name Choice Financial Group
Bank Address 4501 23rd Avenue S Fargo, ND 58104

Recruiter

Jaqueline Marconi

NAME 09.03.2023
Jaqueline Marconi

Ivan Zamesin 09.03.2023
CEO of Zamesin INC